OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Questions for Shoalhaven Council on the Councillors' Conduct Agreement

Sent 13 September 2026 · To Shoalhaven City Council, Cr Wilkins · Response requested by 22 September 2026

13 September 2026

Mr Andrew Constance
Chief Executive Officer
Shoalhaven City Council
By email

cc: A/g Mayor Peter Wilkins

Open letter — questions on CL26.210, the Councillors' Above and Below the Line Agreement (22 September 2026 Ordinary Meeting)

Dear Mr Constance,

I write in the knowledge that correspondence from this publication has, in recent months, been declined on the basis of guidance relating to unreasonable conduct.

I note, for the record, that the application of that guidance to a public interest publication with more than 4,775 local readers is itself a matter currently before the NSW Ombudsman. This is a new complaint from last week based on the Council failing to comply with an agreement with the Ombudsman's Office.

The questions in this letter are not personal complaints. They are questions of public administration, put openly, on behalf of a readership that represents approximately 5.6 per cent of Shoalhaven's registered voters.

They are questions any member of the public could put at an ordinary council meeting. I put them here, in writing, on the public record — and will publish whatever response is received, including none.

Item CL26.210 of the 22 September 2026 business paper puts a draft "Councillors' Above and Below the Line Agreement" to Council, listing 14 "below the line" behaviours and, as I understand the attachment, inviting each councillor to sign it. The attachment I have seen is watermarked DRAFT, carries blank TRIM/version fields, and contains no enforcement clause. It follows three ward workshops facilitated by Brave People Solutions.

I have the following questions.

1. **Necessity. Part 15 of the operative Code of Meeting Practice (POL24/97) already gives the chair power to deal with disorderly conduct at a meeting — points of order,**

findings of an act of disorder under clause 15.11, a 15-minute adjournment for disorder, and expulsion for non-compliance. What specific gap in those existing, statutory powers does the Above and Below the Line Agreement fill that Part 15 does not already address?

1. Origin. Who initiated this project, and on whose instruction was Brave People Solutions engaged to facilitate it? Was the engagement made in response to, or otherwise connected with, the two SafeWork NSW Improvement Notices issued to Council on 14 October 2025 — which required Council to consult with councillors and provide behavioural training? If there is no connection, what was the origin or trigger for the project?

1. Cost. What was the total cost to Council of engaging Brave People Solutions for this project, including the three ward workshops referred to in the report, and against which budget line was that cost recorded?

1. Non-signature. The document is described as an agreement. Is each councillor required to sign it individually, and is there to be a public record of who has and has not signed? What, if anything, is the consequence for a councillor who declines to sign or declines to be bound by it?

1. Legal status and breach. Unlike the Code of Meeting Practice — which is made under the Local Government Act and carries the statutory consequences in Part 15 — the draft agreement as circulated contains no enforcement clause and does not appear to be a statutory instrument. What is its legal status? In practice, what happens if a councillor breaches one of the 14 below-the-line behaviours after signing — who determines that a breach has occurred, and what consequence, if any, follows?

1. Selective enforcement. Because the chair's existing Part 15 powers remain the only real enforcement mechanism available for below-the-line conduct, the agreement's practical effect depends on who is presiding and how those powers are used. Council's own webcast record for the seven sittings between 28 April and 25 August 2026 shows the chair stopping proceedings to name a councillor over conduct 13 times against non-governing-bloc councillors, against 3 times for members of the SIG governing bloc, and five points of order raised against one SIG councillor, Cr Denise Kemp, none of them upheld. Against that record, what safeguards will ensure the agreement is not applied — or reasonably perceived to be applied — selectively along political lines?

1. Value for money. Given the existing Part 15 powers described above, and given the cost of the Brave People Solutions engagement sought at Question 3, what is Council's basis for regarding this project as a good use of ratepayer funds rather than a

duplicative exercise addressing conduct the Code of Meeting Practice already empowers the chair to manage?

I would appreciate a response prior to the 22 September meeting, so that ratepayers have the benefit of Council's answers before councillors are asked to vote on this item. As above, I will publish whatever response is received, including none.

Yours sincerely,

Steve Prothero
Publisher, Eye on Shoalhaven Council
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Note to councillors receiving a copy of this letter: the questions above are put to the CEO on the public record. If you believe they warrant answers, you are in a position to raise them directly in the chamber — through a Question on Notice, a Notice of Motion, or a question to the Mayor in open council — before or during debate on CL26.210.

That is one of the most effective ways to place these matters on the public record in a forum where a response cannot be declined. This publication will report whatever is raised and whatever is answered.
